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Blue Ember Appearance and Disclosure Statement

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Filed January 16, 2026

Blue Ember Biologics, LLC appears as appellant through Maya Holt and Jonas Bell of Holt Bell PLLC. Maya Holt will serve as lead counsel and will receive scheduling, argument, and disposition notices. Jonas Bell is additional counsel of record and is authorized to receive electronic service. Both attorneys appeared for Blue Ember in the originating Western District of North Carolina matter and remain authorized to act for the company in this appeal.

Counsel confirm enrollment in the court's electronic filing system and consent to electronic service at the addresses maintained there. Any change in representation or contact information will be filed promptly. No attorney listed here represents Granite Heron, a nonparty, or any witness whose interest is adverse to Blue Ember in this appeal. The requested caption is Blue Ember Biologics, LLC, appellant, against Granite Heron Logistics, Inc., appellee.

This appearance concerns the appeal from the December 15, 2025 amended judgment and associated posttrial order. It does not expand Blue Ember's notice of appeal, concede the correctness of any posttrial ruling, or waive a challenge to the relief entered below. Counsel's continuity from the district proceeding supplies contact and representation information only; it neither supplements the certified record nor adopts any factual assertion, expert conclusion, preservation position, or monetary calculation for appellate decision, and it resolves no question reserved for later merits briefing.

Organizational disclosure

For purposes of the corporate-disclosure rule, counsel state that Blue Ember Biologics, LLC is a privately held limited liability company. Its sole member and corporate parent is Blue Ember Holdings, Inc., a privately held Delaware corporation with its principal place of business in Asheville, North Carolina. No publicly held corporation owns ten percent or more of Blue Ember or its parent. Counsel have reviewed the ownership information supplied for this filing and understand the continuing duty to amend the statement if a reportable relationship changes while the appeal remains pending.

Blue Ember identifies no publicly traded affiliate whose financial interest would be substantially affected by the disposition of this appeal. Cobalt Finch Bioprocessing is discussed in the district record as a proposed alternate manufacturer, but it is not an owner, parent, subsidiary, or party. That commercial role does not make Cobalt Finch a represented client of Holt Bell PLLC in this matter. The disclosure is offered to support conflict screening and must not be treated as evidence bearing on mitigation or damages.

No insurance carrier has been assigned control of Blue Ember's appellate position. The company's disclosure does not imply a position about whether Granite Heron proved a failure to mitigate, whether a conditional retrial was proper, or which judgment should remain operative. Those merits questions will be presented, if necessary, through briefs grounded in the certified district record and governing law rather than through this administrative statement.

Counsel certification and service

Maya Holt certifies that this filing accurately identifies appellant's counsel and organizational relationships after reasonable inquiry. She further certifies that the document contains no sealed district-court material and no personal identifier requiring redaction. Holt Bell PLLC will preserve the original authorization supporting this appearance and will provide any additional admission or representation form requested by the clerk.

Electronic service was completed on January 16, 2026 through the appellate filing system upon Eli Mercer and Tara Webb of Mercer Webb PLLC, counsel for Granite Heron Logistics, Inc. The filing system's notice constitutes service because each listed recipient is a registered participant. No paper service is represented. Counsel have used the appellate docket number assigned in the January 14 notice and have not used the separate district number as the filing identifier.

Blue Ember requests that all future notices identify Maya Holt as lead counsel while continuing service on Jonas Bell. The company will respond to later orders concerning the record, appendix, briefing, and argument. Nothing in this certification asks the clerk to determine appellate jurisdiction or the legal consequences of Granite Heron's pre-verdict and postverdict motions. Respectfully submitted for Blue Ember Biologics, LLC by Maya Holt and Jonas Bell, Holt Bell PLLC, on January 16, 2026.